

SENATE No. 21

The Commonwealth of Massachusetts

PRESENTED BY:

Julian Cyr

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to amend the Nantucket Planning and Economic Development Commission.

PETITION OF:

NAME:	DISTRICT/ADDRESS:
<i>Julian Cyr</i>	<i>Cape and Islands</i>
<i>Thomas W. Moakley</i>	<i>Barnstable, Dukes and Nantucket</i>

SENATE No. 21

By Mr. Cyr, a petition (accompanied by bill, Senate, No. 21) of Julian Cyr and Thomas W. Moakley (by vote of the town) for legislation to change the name and membership of the Nantucket Planning and Economic Development Commission. Municipalities and Regional Government. [Local Approval Received.]

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 2467 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to amend the Nantucket Planning and Economic Development Commission.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 1 of chapter 561 of the acts of 1973, as most recently amended by
2 section 1 of chapter 347 of the acts of 2018, is hereby further amended by striking out section 1
3 and inserting in place thereof the following section:-

4 Section 1. (a) In order to plan for the orderly and coordinated development and protection
5 of the physical, environmental, social and economic resources of the islands of Nantucket,
6 including the protection of ground, surface and surrounding waters, natural resources, open space
7 and coastal resources, the provision of adequate facilities, including transportation and fair and
8 affordable housing, and the preservation of historic resources, there is hereby established the
9 Nantucket Regional Planning Commission.

(b) The commission shall consist of: 5 members, elected for rotating 3-year terms at the annual town election; and 6 members appointed annually to 1-year terms, 1 of whom is a representative of and appointed by the planning board of the town of Nantucket, 1 of whom is a representative of and appointed by the Nantucket Islands Land Bank Commission, 1 of whom is a representative of and appointed by the Nantucket Historical Commission, 1 of whom is a representative of and appointed by the Nantucket Housing Authority, 1 of whom is a representative of and appointed by the county commissioners of Nantucket county and 1 of whom is a representative of and appointed by the conservation commission of the town of Nantucket.

Any vacancy in the elected members shall be filled by a majority vote of the commission until the next regular town election, at which a new member shall be elected to serve the remainder of the vacated term, if any.

In no case shall any of the elected members or appointed members serve on the commission for more than 9 consecutive years; provided, however, that this section shall not prevent members from serving on other elected or appointed public bodies at any time.

SECTION 2. Section 2 of said chapter 561, as so amended, is hereby further amended by adding the following paragraph:-

The commission shall produce and make available for the annual town meeting a written report of its activities, annually.

SECTION 3. (a) At the first annual town election held after the effective date of this act, the voters of the town shall elect 1 member of the Nantucket Regional Planning Commission for a term of 1 year and 1 member for a term of 2 years; provided, however, that if 3 seats are to be

filled at said election, the voters shall also elect 1 member for a term of 3 years. All subsequently elected members shall be elected to rotating 3-year terms pursuant to subsection (b) of section 1 of chapter 561 of the acts of 1973, as inserted by section 1.

(b) Following the first annual town election held after the effective date of this act, the terms of members previously appointed to the commission by their respective boards and commissions shall terminate and appointments shall be made pursuant to subsection (b) of section 1 of chapter 561 of the acts of 1973, as inserted by section 1.

(c) Following the effective date of this act, members previously appointed at-large by the commission shall continue to serve in such capacity until the date their successor is qualified at the regular annual town election held in the calendar year in which their appointed term ends. At such election, the previously appointed at-large member of the commission shall be replaced with an elected member pursuant to subsection (b) of section 1 of chapter 561 of the acts of 1973. At no time shall the sum of elected members and previously appointed at-large members on the commission exceed 5 in total. In all such cases, previously appointed at-large members shall serve until successor elected members are elected and qualified.

SECTION 4. This act shall take effect upon its passage.